

July 10, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 9149
(EIGHTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of the hazardous materials listed in paragraph 6 below in non-DOT specification IMO type portable tanks. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.242(c), 173.243(c), 173.244(c) and 174.63(c)(1) in that non-DOT specification portable tanks specified in this special permit are authorized.
5. BASIS: This special permit is based on the application of Ethyl Corporation dated October 24, 2003, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Flammable liquid, toxic, n.o.s. (xylene, methylcyclopentadienyl manganese tricarbonyl)	3	UN1992	III
Flammable liquid, n.o.s. (contains petroleum distillates)	3	UN1993	III
Metal carbonyls, n.o.s. (methylcyclopentadienyl manganese tricarbonyl)	6.1	UN3281	II
Motor fuel anti-knock mixtures	6.1	UN1649	I

7. SAFETY CONTROL MEASURES: Prescribed packaging is a non-DOT specification portable tank, mounted in an ISO frame, designed and constructed in accordance with Bleiwerk Goslar KG drawings 82-2-6684.00 and 82-1-6684.01 dated June 14, 1983, other drawings, technical specifications and calculations on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA), and in compliance with the following:

- a. Code - Conforms with DOT Specification 51 except that the tanks are not ASME Code stamped; IMO Type 1.
- b. Insulation - None
- c. Water Capacity (U.S. Gallons) - 3,065
- d. Material - German fine grain carbon steel St E 36; Yield strength - 51,475 psi; Tensile strength - 71,050 psi; Equivalent to ASTM A516 grade 70.

(outside dia)x(length)x(thickness)

e. Tank Size (inches) - 64.96 231.5 0.3937
Head Thickness - 0.3937
Weld Joint Efficiency - 1.0

f. Design Pressure (PSIG) - 100

Note: Design pressure means "maximum allowable working pressure (MAWP)" as used in the ASME Code.

g. Test Pressure, Minimum (PSIG) - 150

h. Openings - One (1) 20-inch diameter manhole containing filling and discharge connections, vent connection, pressure relief device connection, and a blank flange on top; no bottom outlets.

i. Tank surface area (square feet) - 342

j. Pressure Relief Devices - One (1) 1.5-inch diameter spring loaded safety relief valve in series with and outboard of a rupture disc both set at 100 psi. Total relief device capacity is 144,240 SCFH.

k. G-Loadings - Vertical down 2; Vertical up 2;
Longitudinal 3.5; and Transverse 1.5.

l. Maximum Gross Weight (pounds) - 57,320

m. Maximum Commodity Weight (pounds) - 45,415

n. Tare Weight (pounds) - 11,905

o. Design Specific Gravity - 1.78

p. Design Temperature (°F) - 140

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

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- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- c. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-SP 9149".
- d. Hydrostatic test certificates for each tank must be maintained by the manufacturer or owner at its principal business office and be made available to any representative of the DOT upon request.
- e. Each portable tank must be marked with the appropriate proper shipping name listed in paragraph 6 of this special permit.
- f. The tank must be filled as not to be liquid full at less than or equal to 130°F.
- g. Each tank must be (i) visually inspected prior to each trip to ensure that it has not been damaged on the previous trip; (ii) visually inspected at least once every 2-1/2 years as prescribed for IM 101 portable tanks in § 180.605(d), except that an internal inspection is not required; (iii) reinspected once every five years in accordance with § 180.605(e), as prescribed for a DOT Specification 51 portable tank, except an internal inspection is not required provided an ultrasonic thickness test is performed; and (iv) retested once every five years in accordance with § 180.605(e) as prescribed for a DOT Specification 51 portable tank. Ultrasonic thickness testing used as an alternative to an internal inspection must be performed in conformance with applicable procedures specified for thickness testing of cargo tanks as set forth in § 180.407(i).
- h. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat (TOFC) service except under conditions approved by the Associate Administrator, Federal Railroad Administration.
- i. The special permit does not apply to operations beyond the jurisdiction of the United States of America.

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j. Packagings permanently marked 'DOT-E 9149', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 9149'.

k. Shipping papers displaying 'DOT-E 9149' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel and motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

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Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: PTO/sln